sandwor studio

CHECKLIST

Your website and the law: what to check before launch

Points small-business websites in Russia most often miss: personal data, cookies, advertising, sales and content. Checked against the law as of October 2026. Go through the list before the site goes live — fixing things in advance is easier and cheaper than after a letter from Roskomnadzor or a customer complaint.

18 points sandwor.ru Edition: October 2026

Personal data (Federal Law 152-FZ)

- [ ] 1 **A data processing policy is published**
  A separate page linked from the footer and from every form. It says who the operator is, what data is collected, why and on what legal basis, who receives it, how long it is kept and how it is protected (art. 18.1).

- [ ] 2 **Consent is a separate document for each purpose**
  A text of its own for requests, for mailings, for cookies; the checkbox is not pre-ticked and links to that specific consent. Since 1 September 2025 consent cannot be buried in a policy or terms of sale, and "by submitting the form you agree" no longer works (art. 9).

- [ ] 3 **Consent is requested only where it is needed**
  If a person asks for a contract or an answer, that is a legal basis in itself (art. 6). Roskomnadzor calls unnecessary consents a typical violation, and consent that contradicts the policy on data and purposes has already led to fines.

- [ ] 4 **The form collects only what is needed**
  A request usually needs just a name and a phone number. Every extra field costs you leads and adds data you are responsible for (art. 5).

- [ ] 5 **Data of Russian citizens stays in Russian databases**
  Since 1 July 2025 foreign databases may not be used when collecting data: Google Forms, Google Analytics, foreign form builders and CRMs (art. 18 part 5). Check your hosting, CRM, email and form service. The fine for a company or a sole proprietor is 1–6 million roubles.

- [ ] 6 **The Roskomnadzor notification is filed before processing starts**
  Online via Gosuslugi at pd.rkn.gov.ru, free of charge (art. 22). Required of almost everyone, including the self-employed and sole proprietors. The notification must match the policy on the site — Roskomnadzor compares them.

- [ ] 7 **Cookies and analytics only after consent**
  Metrica and other counters load after the notice and the visitor's consent, and the policy describes what they collect. In 2025–2026 courts fined site owners for Metrica without consent. The most reliable option is "Allow" and "Decline" buttons; Webvisor does not record form fields.

- [ ] 8 **Messenger chats are thought through**
  Roskomnadzor has said publicly that chatting with clients on Telegram is not a cross-border transfer, but the data is stored on foreign servers. Move what you need to your CRM and do not ask clients to send document scans via messengers.

- [ ] 9 **Access is protected and internal documents exist**
  Two-factor authentication in the CRM, hosting and email; access only for those who need it. A harm assessment record and a security level decision are short documents the law requires from every operator (art. 18.1, 19).

- [ ] 10 **Requests from people and Roskomnadzor are answered on time**
  People can ask what data you hold and demand deletion: reply within 10 working days; after consent is withdrawn, destroy the data within 30 days and record it (art. 14, 21). Letters from Roskomnadzor also need a reply within 10 working days.

- [ ] 11 **There is a plan for a data breach**
  If your CRM or email is hacked, notify Roskomnadzor within 24 hours and report the investigation results within 72 hours (art. 21 part 3.1). Failing to do so costs a company or a sole proprietor up to 3 million roubles.

Advertising and mailings

- [ ] 12 **Online ads are labelled**
  Posts by bloggers, in channels, ads in VK and Yandex carry the label "Advertising", the advertiser and an erid token (Advertising Law 38-FZ, art. 18.1). Prices and offers on your own website are not advertising.

- [ ] 13 **No ads on banned platforms and no Instagram logos**
  Since 1 September 2025 ads may not be placed on Instagram, Facebook and other blocked resources (38-FZ, art. 5). Instagram and Facebook logos on a website are punished under art. 20.3 of the Administrative Code.

- [ ] 14 **Promotional emails and SMS only with consent to advertising**
  Consent to process data for a request does not allow sending ads. You need a separate tick with the word "advertising", and unsubscribing must work at once (38-FZ, art. 18). The fine for a company is up to 1 million roubles.

Sales and content

- [ ] **15** **The site shows owner and seller details**
  Every website shows the owner's name, address and email (Information Law 149-FZ, art. 10). An online store also shows OGRN or OGRNIP, terms of sale, payment, delivery and returns (Consumer Protection Law, art. 26.1; new Rules of Sale since 1 September 2026).

- [ ] **16** **Consumer information is in Russian**
  Since 1 March 2026 consumer information on a website must be in Russian; an English version is allowed as an equivalent duplicate, and trademarks are not translated (Consumer Protection Law, art. 10.1).

- [ ] **17** **Photos, texts, fonts and reviews are licensed**
  An image "from the internet" can cost from 10 thousand to 10 million roubles in compensation (Civil Code, art. 1301). Client photos and names in reviews and case studies need their consent, including consent to the distribution of personal data (152-FZ, art. 10.1).

- [ ] **18** **Account login by Russian phone number or Gosuslugi**
  If your site has registration, login by email only or via Google is not enough (149-FZ, art. 8 part 10); fines for this apply since July 2026.

Since 30 May 2025 fines for personal data violations have risen several times, and for most of them a sole proprietor pays as much as a company. This checklist is not legal advice: in doubtful cases, show your site to a lawyer.

Want us to check your site against this list and fix everything? Write to us at sandwor.ru — we reply within one business day.

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